

Calendar Line # 8
Case Name Juvenal Plancarte vs General Motors
Case No. 25CV467501
Motion to Compel Deposition Under Code of Civil Procedure Section 871.26; Sanctions <u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Juvenal Plancarte (“Plancarte”)’s December 20, 2022 purchase of 2022 Chevrolet Silverado 150 vehicle, vehicle identification number: 3GCNAAEK8NG679666 (“Subject Vehicle”) that was manufactured and or distributed by Defendant GM. (Complaint). On May 30, 2025, Plaintiff filed a Complaint alleging five causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; and (5) fraudulent inducement-concealment. (<i>Id.</i>). Defendant GM filed an Answer on February 23, 2026. Before the Court is Defendant GM’s motion to compel Plaintiff Plancarte’s deposition under Code of Civil Procedure section 871.26 and request for sanctions. Defendant filed the instant motion on January 30, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on Plaintiff’s counsel on that same day. On August 13, 2026, Plaintiff filed an opposition brief. Defendant filed a reply brief on August 31, 2026. The Court has carefully reviewed the following: Defendant’s notice of motion, memorandum of points and authorities (“MPA”)(totaling 18 pages); Declaration of Kaitlyn Lasater and attached Exhibits A-D in support of the motion and sanctions (totaling 19 pages); Plaintiff’s opposition (totaling 6 pages); Declaration of Tyson Smith and attached Exhibits A-B in support of Plaintiff’s opposition (totaling 14 pages); Defendant’s Reply brief (totaling 6 pages); Declaration of Sanja Stark in support of the GM’s reply (totaling 4 pages) ; proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 871.26, subdivision (c): Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours of the following deponents: (1) The plaintiff. . . (Code of Civ. Proc., 871.26(c)(1)). The legislative intent behind Code of Civil Procedure section 871.26 was to streamline civil procedure associated with claims brought under the Song-Beverly Act by enforcing early exchange of discovery, including depositions within 120 days after filing of the answer or other responsive pleadings. (<i>Id.</i>; California Bill Analysis, A.B. 1755 Assem., 8/30/2024). <u>III. ANALYSIS</u> Defendant GM moves for an order compelling Plaintiff Plancarte to appear for a deposition and request for

monetary sanctions in the amount of \$1,500.00 against Plaintiff.

Defendant demonstrates that it filed a demurrer to the Plaintiff's Complaint, GM's responsive pleading on September 19, 2025, which started the initial discovery timeline set forth under Code of Civil Procedure section 871.26, including the right to take the deposition of the Plaintiff within 120 days of filing of its demurer. (Declaration of Lasater ¶ 3). Defense attempted to meet and confer about discovery starting on September 19, 2025 (*Id.*, 4; Exhibit A) and noticed the deposition of the Plaintiff for October 31, 2025. (*Id.*, 5; Exhibit B). On October 28, 2025, just three days before the scheduled deposition, Plaintiff's counsel objected to the Notice of Deposition on the grounds that it was unilaterally set and that Plaintiff and/or counsel were unavailable. (*Id.*, 6; Exhibit C). From January 12, 2026 to January 22, 2026, defense counsel attempted to meet and confer about rescheduling Plaintiff's Deposition, but did not receive a response from Plaintiff's counsel. (*Id.*, 7-8; Exhibit D). Defense asserts that the statutory deadline to conduct the deposition of the Plaintiff was January 16, 2026. (*Id.*, 9).

In opposition, Plaintiff's counsel asserts that the motion is moot because Plaintiff's deposition was taken on June 3, 2026. (Opposition, 3-4; Declaration of Smith, ¶ 5-7; Exhibit B). Plaintiff's counsel represents that on February 16, 2026, his office reached out to defense counsel and offered a video deposition for Plaintiff on June 3, 2026 at 11:00 a.m., which the defense accepted and served an Amended Notice of Deposition for that date. (Declaration of Smith, ¶ 4; Exhibit A). Plaintiff's counsel attests that because the deposition was completed and that the office acted in good faith, the motion is "no longer outstanding", and there is not failure to comply that would warrant a sanction against counsel. Plaintiff also objects to the motion to compel on the grounds that Plaintiff is not refusing to appear for deposition, but simply seeking a reasonably noticed deposition date. (Declaration of Smith ¶ 3). Plaintiff argues that Defendants' September 19, 2025, notice of deposition for Plaintiff on October 31, 2025, was unilaterally noticed and that Plaintiff and Plaintiff's counsel were unavailable on that date. (Opposition, p. 2-3).

In its reply brief, defense emphasizes that this motion is **not** moot and that Plaintiff's counsel misstates that the motion is moot as deposition was completed on June 3, 2026, citing that it was a different case, (Case No. 25CV467009) for a 2020 Chevrolet Silverado that is **not** related to this present case (Case No. 25CV467501) for the Subject Vehicle. (Reply, p. 1; Declaration of Stark, ¶ 7). Defense asserts that Plaintiff's counsel repeatedly failed to comply with their statutory requirements having objected to a properly noticed deposition and failing to respond to GM's repeated attempts to schedule Plaintiff's deposition. (*Id.*).

The Court finds this misstatement to be significant and finds that the motion remains at issue. Exhibit A attached to the Declaration of Smith includes an email correspondence that bears the subject line: "[EXTERNAL] RE: Plancarte, Juvenal v. GM | Case no. 25CV67009 | Setting Pltfs' Depo." The Court notes that while the name of the Plaintiff is correct, the case number does not match the case number in this present case, 25CV467501. Plaintiff's counsel has failed to show good cause for failing to produce the Plaintiff for deposition within 120 days after the defense filed a responsive pleading. (Code of Civ. Proc., § 871.26(c)(1)). The Court does not find Plaintiff's reasoning persuasive. For over four months Defendant has demonstrated its efforts to meet and confer about the deposition of the plaintiff. The Court GRANTS the motion to compel Plaintiff's deposition.

IV. SANCTIONS

Code of Civil Procedure section 871.26, subdivision (j), subsection (2) provides in relevant part:

Unless the party failing to comply with this section shows **good cause**, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court **shall** impose sanctions as follows: